LANGENI DLAMINI

Versus

SIPHIWE DLAMINI

AND

THE DEPUTY MASTER OF THE HIGH COURT N.O

IN THE HIGH COURT OF ZIMBABWE
MOYO J
BULAWAYO 27 JANUARY AND 22 MAY 2026

Absolution from the instance

P. Madzivire, for the plaintiff
K. Ngwenya, for the 1st defendant

MOYO J:- Plaintiff issued summons against 1st defendant claiming:-

1. That stand 60 of Lot 1 Emakhandeni be deemed an asset in the deceased estate of the late Feleni Amos Dlamini registered with 2nd defendant under cover of DRB 1186/19.

2. That stand 60 of Lot 1 Emakhandeni be excluded from the estate of the late Mxotshwa Derris Dlamini.

3. Costs on a punitive scale.

At the close of the plaintiff's case 1st defendant made an application for absolution from the instance primarily on the basis that plaintiff failed to establish a *prima facie* case on a balance of probabilities against the 1st defendant and that plaintiff primarily sought to rely on hearsay evidence of what was allegedly said by the late Feleni Amos Dlamini.

That plaintiff failed to show Feleni Dlamini's payments for the property.

That plaintiff contracted his brother Ndabezinhle on material respects.

Plaintiff's counsel dwells on the issue of who occupied the aforementioned stand prior to August 2022 and says by reason of prescription 1st defendant does have a case to answer.

The evidence before the court is that:-

Plaintiff says he got to know 1st defendant for the 1st time in 2020 after the death of his father, she came to his father's funeral and that is where introductions were made.

He says his father told him that he bought the house being the subject matter of this dispute in October 1981 and he used Mxotshwa Dlamini's particulars to do so. His father showed him the Memorandum of Agreement that he was given by the council. He said he stayed at the house up there until his father died in 2019. He said 2 months after his father's death people came claiming the house but he had never seen them during his father's lifetime.

He said he was born in 1981 the same year the house was bought so he did not know anything about its purchase unless what he was told by his father. He was asked under cross-examination if his father ever claimed the house from Mxothswa Dlamini before 2012 the year that Mxotshwa Dlamini died.

He said his father had called Mxotshwa Dlamini to come and clarify the issue but Mxotshwa refused to come. He admitted that save for going to Entumbane Housing Office, no legal steps were taken to get the house from Mxothswa Dlamini.

He said that from 1981 to 2019 he is not aware of a legal claim by his father for the house but that maybe he did claim since the plaintiff was young. He said his father could not claim the house from 1981 to 2019 even if he wished to because he had no birth certificate. Asked what year his father took his birth certificate he said 2004. Challenged on his father's failure then to act legally after 2004, now that he had the birth certificate he said the father had said he trusted his brother. When it was put to him that his father failed to act because he never purchased the house, he replied by saying he could not comment as the house was acquired when he was less than a year old. He said he knew that the house was bought for $1 250. He said Mxotshwa's name was not even on the agreement. Shown the agreement, he then confirmed that Mxothswa's name was there but the signature was for F. A Dlamini

When asked to look at the signature on the document and state the initial there, he then said he cannot argue if its M or F because he was not there. He was also shown that per the agreement the price was $2 555 not the 1 250 that he was claiming. He later answered by saying he was not sure since he was not there.

He denied that Mxotshwa and his family ever lived at the house and said they were even asking him as to how many rooms the house had. He said Mxotshwa never even spent a

day at the house and that he lived at the house until 2020 and could prove that Mxothswa never lived there.

Ndabezinhle Ncube was plaintiff's 2nd witness. A brother to plaintiff and Feleni Dlamini's son. He said he lived at the disputed house since 1982. He said his father owned the house but used Mxothswa's particulars as he had no marriage certificate. He said Mxotshwa would come for a week or 2 weeks to visit them go back to the village where he stayed with his children.

He said 1st defendant never stayed there. He was challenged under cross-examination how he was a Ncube yet claiming to be Dlamini's son. He was challenged that Mxotshwa signed the agreement with council as there is clearly an M, not what he was alleging that his father signed. He said he could not deny that since the brothers (their fathers) were in good books. He said he knew 1st defendant and her siblings and that they would come as a family and visit but did not stay there.

He also confirmed that Feleni never made any legal claims for the house from Mxotshwa. It was put to him that plaintiff never mentioned him as being one of the people who stayed at the disputed house and he said he had no comment. He said plaintiff stayed in Esigodini.

In order to succeed plaintiff had to lead evidence on the acquisition of the property showing that Feleni Dlamini acquired it and not Mxotshwa. No such evidence was ever led. Instead plaintiff sought to rely on hearsay from his father. Not only was it hearsay but it did not establish anything.

Plaintiff did not lead evidence on the essential part of the claim, that of acquisition of the disputed house. Nowhere in the plaintiff's case is it laid on a *prima facie* basis that Feleni Amos Dlamini did acquire the disputed house. Plaintiff did not even know for how much it was acquired, who paid the sum, how and when, plaintiff could not explain the failure by Feleni Dlamini to claim his house from Mxotshwa or his estate for 38 years. Whilst plaintiff sought to rely on lack of occupation of the house by Mxothswa's family, even claiming that they never set foot at the house and that if they did they never even spent a day, his witness said they would visit for a week or 2 weeks.

Whilst plaintiff sought to say 1st defendant never set foot at the house and that he did not know her prior to his father's death, Ndabezinhle said he knew 1st defendant and her siblings and that they would visit the house in question. Plaintiff and Ndabezinhle contradicted each other on who lived at the house. This is material because plaintiff is using it to show possession and 1st defendant's non usage ever of the house.

Can it be said that at this juncture plaintiff has laid on a balance of probabilities a *prima facie* case calling upon 1st defendant to answer? The answer is definitely No. I say so because the crux of the matter on entitlement, is the acquisition of the immovable is its acquisition, the mode, and payment for same. Other than that Felani Amos Dlamini lived at the house, there is absolutely no evidence pointing at his acquisition of same. Even the people alleging possession and to have lived there for over 30 years are contradicting themselves as to who lived there, did not live there and Mxotshwa Dlamini's presence at the disputed house. The material contradictions and inconsistences between plaintiff and his witness make it even worse to find that plaintiff established anything close to a *prima facie* case at all. It is for these reasons that I find that 1st defendant has made a case for absolution from the instance and I will accordingly grant same.

1. Consequently the application is granted.

2. Defendant is absolved from the instance with plaintiff paying the costs.

Joel Pincus Konson and Wolhuter, plaintiff's legal practitioners
T. J Mabhikwa and Partners, 1st defendant's legal practitioners